
Appeal Decision

Hearing held on 17 June and 31 July 2026

Site visit made on 18 June 2026

by Jennifer Wallace BA(Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17th September 2026

Appeal Ref: 6004144

Land South of Warren Lane, Hurst Green, RH8 9BW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Wates Developments Ltd against the decision of Tandridge District Council.
 - The application Ref is 2025/613.
 - The development proposed is outline planning application for up to 132 residential dwellings, including 50% affordable housing, vehicular access off Holland Road, pedestrian and cyclist access off Holland Road and Warren Lane and provision of public open space with associated landscape planting with associated infrastructure, drainage measures, earthworks and all other associated works (inc. removal of PLUTO pipeline; realignment of foul water pipelines; and grounding of power lines). All matters reserved except accessibility to the Site, for vehicles and pedestrians and cyclists.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs has been made by Wates Developments Ltd against Tandridge District Council. This application is the subject of a separate decision.

Preliminary Matters

3. The planning application was submitted in outline with all matters reserved save for access. The proposal before me shows vehicular access to the site would be taken from Holland Road opposite the access to the Diamond Inn and would include connections to the existing footpaths. There would be a further five pedestrian accesses to the site at the locations of the existing public rights of way.
4. A completed planning obligation, dated 13 August 2026 pursuant to Section 106 of the Town and Country Planning Act 1990 (as amended) was submitted following the hearing sessions. This makes provisions with respect to education, healthcare, monitoring, affordable housing, open space, biodiversity net gain, highways and traffic. I will return to this in due course.
5. On 17 August 2026, a revised National Planning Policy Framework (Framework) and Housing Delivery Test results were published. I have sought further views from the main parties on this and have taken those comments into account in reaching my decision.
6. The site lies within the setting of a listed building. Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) requires me to have

special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.

7. The Council's second reason for refusal contended the site was in an unsustainable location. As this issue is considered as part of the assessment against Framework Policy GB7(g), I have not considered this as a separate main issue. In light of comments made by interested parties, and the matters discussed at the hearing, I consider that whether suitable living conditions could be achieved for future occupiers of the proposed dwellings with respect to odour should also be considered as a main issue.

Main Issues

8. The main issues are
 - whether suitable living conditions could be achieved for future occupiers of the proposed dwellings with respect to odour;
 - whether the development would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies; and
 - The effect of the proposal on designated heritage assets.

Reasons

Odour

9. The application was accompanied by an odour assessment given the proximity of the site to the Oxted Waste Water Treatment Works (WWTW) which was carried out on the basis of a proposed upgrade to the treatment works. It identified areas within the proposed developable area of the site which would be subject to odour levels within the range of 3.0ouE/m³ and 1.5-3.0ouE/m³. It also included evidence which indicates that development within the 1.5-<3 contour could have a slight effect and within the 3-<5 contour could have a moderate effect on highly sensitive receptors, which residential accommodation would be. Concern regarding odour was raised in the representations to the application. However, the matter was not expressly considered in the officer report, nor did Southern Water submit a consultation response.
10. During the hearing, the parties were made aware of a later response from Southern Water, objecting to the proposal and advising there should be no development within 500m of the WWTW. While the evidence before me indicates Southern Water's odour consultant subsequently reached an understanding that development within the 3.0ouE/m³ contour would be acceptable, that is not the view of Southern Water, who are the statutory consultee. Their position is that levels greater than 1.5ouE/m³ would represent a harmful effect on the living conditions of occupiers of any properties that fell within that area. Taken alongside the references to the effects of odours at 1.5ouE/m³ in the odour assessment, I am not satisfied that acceptable living conditions would be achievable in the areas identified within the contour.
11. The proposal before me is in outline. However, given the extents of land within the developable areas which fall within the 3ouE/m³ contour, even if I were satisfied this were an appropriate level, there would be some doubt as to whether the

proposed quantum of development could be satisfactorily accommodated. Taken alongside the other factors that would inform the final design of any scheme, I cannot be certain that the 132 dwellings could be satisfactorily accommodated within the appeal site, irrespective of which odour contour is used.

12. Furthermore, it also became apparent that not only had the proposed upgrade to the treatment facilities not been carried out, but that a different upgrade was now proposed. Details of that proposed upgrade were not publicly available. This would introduce further uncertainty as to the effects of odour on the areas of the site to be developed, and the ability for it to accommodate 132 dwellings within the proposed developable area, as the evidence before me no longer represents a likely future scenario.
13. There was some dispute at the hearing as to the extent to which complaints regarding odour had been made. However, even if it were the case that no complaints had been made previously, this does not change my view that I cannot be certain there would not be adverse effects for future occupants. It may also be that development within these levels has been found to be acceptable elsewhere, but I must determine this appeal on the basis of the evidence before me in relation to this site.
14. I acknowledge that this did not form one of the Council's reasons for refusal and the objection from the statutory undertaker appeared very late in the process. I also acknowledge the appellant's efforts to engage with the statutory undertaker on this point. However, Framework Policy P3 of the Framework confirms development proposals must be appropriate for their location, taking into account the likely effects of pollution on living conditions. Framework Policy P4(2) confirms that where the operation of an existing activity could have a significant adverse effect on a proposed new development in its vicinity, it should be demonstrated that suitable mitigation can be provided, and that conditions should be used to secure agreed mitigation. The appellant has suggested a condition could be used to address this issue. However, this permission would be the planning permission, and I cannot impose a condition which could prevent the quantum of development sought from being implemented.
15. I therefore cannot be satisfied that the proposal would provide suitable living conditions for future occupiers with respect to odour. This would be contrary to the provisions contained within Framework Policies P3 and P4.

Whether Inappropriate Development

16. The site is located within the Metropolitan Green Belt. The Framework confirms in Chapter 13 that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The Framework also confirms at policy GB6(1) that development is inappropriate in the Green Belt unless it is one of the exceptions listed.
17. Tandridge Local Plan Part 2: Detailed Policies 2014-2029 (adopted July 2014) (LPDP) Policy DP10 confirms the location of the Green Belt and that inappropriate development will normally be refused and only permitted where very special circumstances exist. Policy DP13 confirms that the construction of new dwellings in the countryside will be regarded as inappropriate other than a specified list of exceptions. It also refers to paragraph 90 of the then Framework. The Framework has been subject to change since the LPDP was adopted. Pertinent to this appeal

is the introduction of policy GB7(g) containing clauses i-iv, all of which must be met in order for this proposal to be considered not inappropriate.

18. The appeal site is a roughly boot-shaped parcel of land, with the toe of the boot running north between a wastewater treatment works (WWTW) and dwellings on the opposite side of Warren Lane. It is bounded by dwellings to the north, the WWTW and tree belt to the west, fields, a wood and a modest sized recreational facility to the south, and dwellings on the opposite side of Holland Road to the east. Its boundaries are largely defined by trees and hedgerows, although there are some gaps in this. While development along the northern boundary is largely consistent, the built form along Holland Road is generally set in more spacious plots. The site is immediately adjacent to Oxted, Hurst Green and Limpsfield which is identified as a category 1 settlement and acknowledged by the Council to be a large built up area.
19. The glossary to the Framework defines, relevant to this appeal, grey belt as land in the Green Belt as any other land that does not strongly contribute to any of purposes (a), (b), or (d) in policy GB2. Annex E of the Framework now incorporates the advice contained in the Planning Practice Guidance (PPG)¹ on how the contribution land makes to the relevant Green Belt purposes should be assessed.
20. Purpose A is to check the unrestricted sprawl of large built up areas. The appeal site has well defined boundaries. It is effectively enclosed by development to the north, west and east. The boundaries of the site are regular except for the 'toe' where it projects north and into an area very clearly enclosed by existing development.
21. While landscaped boundaries can be removed, this is also true of many forms of development. Furthermore, there are Tree Preservation Orders and other controls that could address the removal of the larger areas of tree cover. The appeal site is also partially enclosed by the sports facility along the southern boundary. That this use may be not inappropriate in the Green Belt, or that it does not have the robustness of a physical building do not alter the fact that the landscaped boundary and sports facility would serve to restrict development.
22. The proposal would therefore not result in an incongruous pattern of development. Having regard to the advice in Annex E of the Framework, the appeal site clearly makes a moderate contribution towards purpose A. The precise layout of the proposed development is not necessary to allow this assessment to be made.
23. Purpose B is to prevent neighbouring towns merging into one another. There are no settlements of any size in proximity to the southern extent of Hurst Green. The appeal site makes no contribution to purpose B.
24. Purpose D is to preserve the setting and special character of historic towns. There was no substantive case before me setting out why the settlement should be considered as a historic town. Nor was any visual, physical or experiential connection to any historic aspects of Oxted or Hurst Green/Holland put forward. There is no evidence to show that the Council has formally adopted the findings of Sevenoaks District Council with respect to Green Belt. The appeal site makes no contribution to purpose D.

¹ Green Belt

25. I am therefore satisfied that the site would meet the definition of grey belt as it would be any other land which would not strongly contribute to any of the above Green Belt purposes.
26. The remaining Green Belt purposes are C to assist in safeguarding the countryside from encroachment and E to assist in urban regeneration, by encouraging the recycling of derelict and other urban land. There is no evidence before me to suggest the proposal would harm efforts at urban regeneration. Given the size of the site, extent of Green Belt within Tandridge, its position immediately adjacent to the built up area and its relationship with surrounding development, the proposal would not fundamentally undermine the purposes of the remaining Green Belt across the area of the plan.
27. It is not in dispute that the Council cannot demonstrate the requisite five year supply of housing land. Nor has it met the requirements of the housing delivery test. There is therefore an evidenced unmet need for the development proposed.
28. The site lies immediately adjacent to Holland/Hurst Green which are contiguous with Oxted. This is one of the largest settlements in Tandridge district. The parties reached agreement on the distances of the site from the key services and facilities within the settlement. A number of services and facilities necessary for day-to-day living all lie within at most 1.7km of the site. There is no requirement that every service for day-to-day living should be within walking distance of a site, nor would it be reasonable to assess proposals on this basis. Furthermore, many services and facilities are located within Oxted which is accessible by bus. While some guidance states that bus stops should be within 400m of residential properties, this is only guidance. Stops would be 430 or 530m from the site. Neither of these is an impractical or unreasonable distance for the average person to walk.
29. At my site visit, I walked from the site to the railway station and back using both Holland Road and Mill Lane. While I acknowledge this was during particularly sunny weather, both were pleasant walking routes through an attractive settlement. There were no barriers which would deter the average person from using these routes. However, at twice the reasonable walking distance and time identified in the Framework glossary, the site would not meet the requirements of Framework Policy GB7(h).
30. While longer distance cycling may be a less attractive option given the nature of the roads leading towards Oxted, journeys to the services and facilities within the settlement could be made by cycle. The location would therefore offer a genuine choice of transport modes for future residents.
31. While the nursery and infant school is some distance away at 1.7km, the junior school is less than 400m away. This is a not uncommon effect of the infant and junior school system, and would not merit the refusal of the proposal. The demand for school places generated by the development would be addressed through the planning obligation, and the fact a school is regularly over-subscribed can be a reflection of a number of factors, given that parental choice is embedded in the applications process. It is not unusual for secondary school pupils to have to use public transport. Similarly, it is not unusual for medical facilities to be beyond walking distance.
32. The use of the Connectivity Tool was in dispute. It seems only logical for the accessibility of a site to be assessed in the context of the area in which it is

located, as it is on that basis that housing needs, and identifying sustainable locations for housing would be made. I also note that Framework Policy TR3 makes reference to the context of the area within which [a development] would be situated. I am therefore satisfied that the site lies within a sustainable location.

33. As a major development involving housing, it is also necessary for the proposal to comply with Framework Policy GB8. The planning obligation would secure affordable housing. It would also secure off-site highway improvements and enhancements to bus stops.
34. Although the proposal is outline, a parameter plan has been put forward. This shows substantial undeveloped areas to the western and southern boundaries of the site. These are the boundaries which are not contiguous with the existing built form of the settlement, notwithstanding the WWTW and so would be capable of making a positive contribution to the landscape setting of the development, albeit with details secured at the reserved matters stage. Nature recovery, alongside biodiversity net gain could be readily incorporated into this and secured by condition as the area of land identified exceeds any local standard for the delivery of open space.
35. There is an area between the WWTW and the tennis club along the southern boundary where the landscaping is less dense and the land beyond is undeveloped. However that does not form part of this proposal, and any attempt to develop that land would be subject to assessment against the relevant policies at such a time as it came forward. Assessment of the site for the purposes of the withdrawn local plan pre-dates the introduction of grey belt into national policy and the consequent update of the PPG. Those findings would not alter my assessment of the site as set out above.
36. The proposed development would be in accordance with the requirements of Framework Policy GB7(g). In reaching this conclusion, I have had regard to the requirements of Framework Policies TR3 and GB8. Accordingly, the proposal would constitute development which would be not inappropriate in the Green Belt. It is therefore not incumbent on me to consider the effects of the proposal on openness.

Heritage Assets

Special Interest and Significance

37. Jincox Farm House² is a Grade II listed building. Dating from the late 16th century, it is a timber framed building, with red brick cladding below and hanging tiles above, with a plain tiled, half hipped roof. Relevant to the appeal, the asset's special interest also stems, in part, from its setting which includes the appeal site. Its special interest lies in its architectural interest as an early post-medieval house and its historic interest as to land use and development of the area through time.
38. Pertinent to this appeal, special interest and significance also stem in part from its setting. The immediate setting of Jincox Farm House consists of what is now its domestic garden which allows its architectural interest to be best appreciated. The historically associated farm buildings and position of the road also add to the ability to appreciate the historic significance of the asset. The evidence before me

² List Entry Number:1189743 Date first listed:11 June 1958

indicates the appeal site formed part of the holding of Jincox Farm. This not only allows the extent of the holding to be appreciated, it also provides separation between the Farm House and the settlement. It therefore contributes to the ability to appreciate its historic significance of the listed building.

Proposal and Effects

39. The proposal is for primarily the residential development of the appeal site, with associated open space. Views of Jincox Farm House from the appeal site are limited to glimpsed views due to the intervening planting. From the Farm House, views tend to be filtered, also as a result of the vegetation. Notwithstanding, the ability to appreciate the extent of the holding would be reduced, as would the separation between Jincox Farm House and the settlement.
40. Consequently, and in common with the main parties, I agree that the proposal would fail to preserve the setting of Jincox Farm House and so harm its significance.

Public Benefits and Heritage Balance

41. Framework Policy HE6 sets out that substantial weight should be given to the asset's conservation, and the more important the asset, the greater the weight should be. This is irrespective of whether any potential effect amounts to a positive effect, harm, substantial harm, or total loss of its significance.
42. The proposal would result in harm to the significance of the Grade II listed building as a result of development within its setting. Having regard to the requirements of Framework Policy HE5(2), I consider that this harm would be at the very lowest level. In such circumstances, Framework Policy HE6(4) sets out that the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal. In this case, the public benefits of the delivery of up to 132 dwellings of which half would be affordable, along with the economic and environmental benefits set out later in this decision, clearly outweigh the harm at the very lowest level that would occur to the significance of Jincox Farm House. Consequently, I am satisfied that the proposal would not conflict with the requirements of section 66(1) of the Act or the requirements of the Framework and (LPDP) Policy DP20 which confirms that only where the public benefits of a proposal significantly outweigh the harm to a designated heritage asset or its setting, will exceptional planning consent be granted where the benefits will be proportional to the significance of the asset and to the level of harm proposed.

Other Matters

43. The planning obligation makes provision for financial contributions towards education and healthcare. It also includes provisions with respect to the delivery and long term management of open space and biodiversity net gain, alongside highway improvements and with respect to travel plans and monitoring. These provisions would all be reasonable and necessary to make the development acceptable in planning terms to meet the demands generated by the development. Notwithstanding, there would be wider public benefits arising from the provision of open space, biodiversity net gain and highway works which would be accessible to others.

44. A pipeline passes through part of the site. It does not fall within the requirements to consult with the Health and Safety Executive. The appellant engaged with the pipeline operator who confirmed they marked out the position of the pipeline prior to the submission of the application. Notwithstanding the controls provided by the Pipeline Safety Regulations 1996, further detail could be sought as part of the consideration of layout to ensure that suitable provision for access and maintenance could be achieved without an unduly adverse effect of the living conditions of future occupiers or the operation of the public facilities proposed within the open spaces.
45. Concern was raised with respect to the capacity of the WWTW. Pre-application correspondence with the statutory undertaker indicated capacity was available and I have no reason to dispute this. Furthermore, the evidence before me indicates that an upgrade of the facilities is likely to come forward in the short to medium term. This is sufficient to ensure that appropriate provision for the disposal of waste water could be made for planning purposes.
46. Policy P3(3) of the Framework advises that it should be assumed, unless there is clear evidence to the contrary, that separate regulatory regimes for the control of pollution will operate effectively. Considerable concern was expressed as to the effect of discharges of waste water on the surrounding water environment at the hearing, with detail as to the number of discharges provided. However, as I am dismissing the appeal for other reasons, it is not necessary for me to consider whether this would amount to clear evidence.
47. There would be an inevitable urbanising effect on the site arising from the proposed development. This would harm the landscape character of the area, however given the location of the site, the control provided by the parameter plan as to the location of built development and the degree of containment provided by the site boundaries, I am satisfied this would be limited in the long term and be localised in its effect. The consequent loss of best and most versatile agricultural land that would also be an inevitable consequence of the development would also be of limited weight.
48. Walkers using the public right of way through the site would experience a change to walking through a housing estate for part of the length of the site. However, this would be for a short distance to the undeveloped area of the site and then the open countryside beyond. Walkers would also be coming to or from the built up area of the settlement. Given the length of the developable area, the effect on users of the footpath would be negligible. There would also be benefits from the increased connectivity between the rights of way adjacent to the site which would be addressed when layout considered.
49. The proposal was supported by the requisite supporting documents, and the Council's officer report assesses these. No other issues were identified with the proposal and I have no reason to find otherwise. However, the majority of these considerations amount to a lack of harm and so would be neutral in my assessment. I have no reason to consider that an acceptable scheme, including with respect to character and appearance and living conditions (other than odour) could not be brought forward at the reserved matters stage.
50. I have been referred to a number of other appeal decisions. However, the main issues in this case turn on the specific circumstances of this site and its surrounds.

Decisions taken elsewhere would not lead me to a different conclusion in this case.

Planning Balance

51. The site lies outwith the settlement boundary. It is not in dispute that the Council cannot demonstrate a deliverable supply of five year housing land, with the evidence before me indicating a supply of approximately 2 years. The requirements of the Housing Delivery Test have also not been met, with the results for 2025 showing 38%. Both of these positions indicate worsening performance. I have also found that the site would be physically well-related to an existing settlement. Consequently, Policy S5(j) of the Framework confirms that the proposal would be a form of development that should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
52. Framework Policy HO7 sets out substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community. While housing mix is a matter to be assessed at the reserved matters stage, I have no reason to think this could not be achieved. I also attach substantial weight to the delivery of affordable housing as the planning obligation would ensure this would be delivered onsite, in accordance with Framework Policy HO8. I am also cognisant of the public benefits arising from the delivery of housing in an area with notably low levels of supply and delivery, and I attach substantial weight to the compliance with the Golden Rules as required by Framework Policy GB8(2). There would also be economic benefits arising during both the construction and occupation stages of the development. These would be of moderate weight given the scale of the proposed development. Of limited weight would be the provision of additional open space, the enhancements associated with the delivery of biodiversity net gain and highway improvement works.
53. However, harm would arise were occupiers of the proposed dwellings adversely affected by odours arising from the WWTW. Policy P3(1) of the Framework is clear that development proposals should be appropriate for their location, having taken into account the likely effects of pollution on living conditions. Policy P3(2) is clear that development proposals should provide healthy living conditions for occupiers where sources of pollution could have an unacceptable adverse effect on the quality of life. Given the extent of the unknown factors, I cannot be certain that development of the scale proposed could be brought forward appropriately on this site.
54. I find that the benefits of approving the proposal would be substantially outweighed by the adverse effects when assessed against the national decision-making policies in the Framework. The proposal therefore does not benefit from support from Policy S5 of the Framework and consequently would not benefit from the presumption in favour of sustainable development set out in Framework Policy S3.

Conclusion

55. The appeal proposal would conflict with the development plan when read as a whole. There are no material considerations, including the Framework, of sufficient weight to indicate the decision should be taken otherwise. For the reasons given, I conclude that the appeal should be dismissed.

Jennifer Wallace

INSPECTOR

APPEARANCES

FOR THE APPELLANT

Sasha White KC
Phillip Bell
Gail Stoten
Catherine Ritson
Asher Ross
Joe Maphosa
Juliet Munn

FOR THE LOCAL PLANNING AUTHORITY

Heather Sargent
Peter Rainier
Amit Patel
Louise Hooper
Ignus Froneman

INTERESTED PARTIES

Anne Bishop
Kelly Kent
Oscar Smith
Kristina Cornelius
Helen Mahy
Councillor Catherine Sayer
Oliver Rimmer
Nigel Conquest
Tara Thomas
Julian Chenery
Michael Smith
Keith Masters
June Thompson
Dr Stringer

DOCUMENTS

- HD1: Distances to Local Amenities in Hurst Green
- HD2: Appellant Opening
- HD3: Southern Water letter dated 27 May 2026
- HD4: Oscar Smith Youth Statement
- HD5: Kristina Cornelius Affordable housing and light pollution Statement
- HD6: Kristina Cornelius Ecology Statement
- HD7: Helen Mahy Jincox Farm Statement
- HD8: Oliver Rimmer Hard Infrastructure Statement
- HD9: Nigel Conquest Soft Infrastructure Statement
- HD10: Tara Thomas Community Centre Trustees and Green Belt Statement
- HD11: Julian Chenery Local Identity Statement
- HD12: Michael Smith Flood Risk Statement
- HD13: Keith Masters River Eden Water Quality Statement
- HD14: River Eden Catchment Water Quality Monitoring Report 2025 by New Edenbridge and District Residents' Association submitted on behalf of Friends of the River Eden Ecosystem
- HD15: Kelly Kent Strong Local Objections Statement
- HD16: Updated Draft Planning Obligation
- HD17: Council correspondence with Exoleum dated 10 July 2026
- HD18: Appellant correspondence re: Exoleum meeting dated 29 July 2026
- HD19: Appellant correspondence re: Health and Safety Executive dated 29 July 2026
- HD20: Council Wastewater Briefing Note
- HD21: Appellant correspondence re: Odour dated 30 July 2026
- HD22: Council wastewater condition
- HD23: Council correspondence with Southern Water dated 26 July 2026
- HD24: Council correspondence with Exoleum dated 27 July 2026
- HD25: Appellant Odour Note dated 30 July 2026
- HD26: Southern Water comment dated 27 July 2026
- HD27: Appellant Updated Odour Note dated 30 July 2026
- HD28: Completed Planning Obligation
- HD29: Note on Conditions
- HD30: Council Closing
- HD31: Appellant Closing
- HD32: Appellant National Planning Policy Framework Comment